

Amendment No. 1 to SB0970

Reeves
Signature of Sponsor

AMEND Senate Bill No. 970

House Bill No. 660*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 7-36-107(b), is amended by adding the following language at the end of the subsection:

Except to the extent modified by the authority's certificate of incorporation, the board of directors of the authority may, as part of the transfer of a water and wastewater system or at any time thereafter, adopt and assume all or any portion of such regulatory powers, authority, duties, obligations, and oversight over the water and wastewater operations as were applicable to the municipal water and wastewater system pursuant to ordinances, resolutions, or other rules or policies that were in effect immediately prior to the transfer of such system to the authority. The board of directors of the authority may later amend such rules, regulations, and requirements from time to time; provided, that such amendments are just and reasonable.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.